

Chief Justice's Court

Case :- WRIT - C No. - 49548 of 2015

Petitioner :- M/S Vimla Gramodyog Sansthan Thru' Its Prop. Smt. Meera Devi

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Another

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice

Hon'ble Yashwant Varma, J.

The petitioner is aggrieved by a demand issued by the Executive Engineer of the first respondent in the amount of Rs.11,87,896/- on the ground that the petitioner had been erroneously billed at half the applicable rate from August 2011. A remedy is provided to the petitioner in this regard under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

The issue as to whether any part of the amount claimed is barred by the provisions of Section 56 (2) of the Electricity Act, 2003 can well be urged and decided by the competent authority. We are unable to enter upon the challenge advanced to the provisions of clause 6.1 (g) of the Code, 2005. The submission of the petitioner is that insofar as clause 6.1 (g) empowers the licensee to recover "various charges", the provision is ultra vires Section 55 of the Electricity Act, 2003. The issue of vires of clause 6.1 (g) of the Code, 2005 would not arise in these proceedings because the demand dated 24 June 2015 is not for the recovery of "various charges" within the meaning of clause 6.1, but in respect of the

wrongful billing, which according to the competent authority was made upon the petitioner at half the amount which is otherwise payable.

We, however, clarify that since we are inclined to relegate the petitioner to the alternative remedy under clause 6.5 of the Code, 2005, nothing contained in this order shall be construed as any expression of opinion on the merits of the grievance. It would be open to the petitioner to move the competent authority for a due direction for the restoration of the electricity supply subject to compliance with such terms and conditions as are prescribed. In the event that the petitioner moves the competent authority within a period of two weeks from today, the authority shall endeavour to dispose of the dispute within a period of one month thereafter.

The petition is, accordingly, disposed of. There shall be no order as to costs.

Order Date :- 14.9.2015
RKK/-

(Yashwant Varma, J)

(Dr D Y Chandrachud, CJ)